



File No.: EXP202302801

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on February 18, 2023. This complaint was directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), for the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible violation of the provisions of Article 6.1 of the GDPR.

In this complaint, the claimant stated that the respondent, who was a tenant of a property owned by the claimant, installed a video surveillance camera next to the entrance of the property without obtaining authorization from the claimant or the homeowners' association where the property is located, which is capable of capturing images of communal areas of the building where the property is situated.

To substantiate these facts, the claimant submitted images of the location of the aforementioned video surveillance camera along with their complaint.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The notification to the respondent of the transfer and request for information was attempted via postal service, in accordance with the provisions of Articles 41 and 42 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and was returned on March 30, 2023, due to absence of delivery on March 17 and 22, 2023, according to the delivery proof in the file.

After reiterating the transfer and request for information, it was returned again on April 26, 2023, due to absence of delivery on April 14 and 18, 2023, according to the delivery proof in the file.

THIRD: After the period established by Article 65 of the LOPDGDD had elapsed, the complaint submitted by the claimant was understood to be accepted for processing as of May 18, 2023.

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FOURTH: On June 27, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The notification to the respondent of the transfer and request for information was attempted via postal service, in accordance with the provisions of Articles 41 and 42 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and was returned on March 30, 2023, due to absence of delivery on July 11 and 12, 2023, according to the delivery proof in the file.

Following two unsuccessful attempts and in accordance with the provisions of Article 44 of the aforementioned Law 39/2015 of October 1, the announcement of the notification was made through publication in the Official State Gazette on July 24, 2023, granting a maximum period of 10 working days from the day following the publication of said announcement to request a copy of the document corresponding to the administrative act.

Once the notification of the aforementioned initiation agreement was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the

content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not submitted allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven,

PROVEN FACTS

FIRST: From the documents provided by the claimant, it is evident that there is a video surveillance camera installed at the door of the respondent's home. The submitted images show that this camera can capture various areas of the communal zone of the property, including those neighbors who pass through the building's stairs.

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SECOND: During the instruction of this procedure, the claimed party has not provided any minutes or agreement from the homeowners' association of which the property in question is a part, authorizing the installation of this type of video surveillance systems, as required by the Horizontal Property Law.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection, therefore, is subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or camcorders are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (image of individuals) carried out through the reported video surveillance system complies with the provisions established in the GDPR.

III

Unfulfilled obligation

Article 6.1 of the GDPR establishes the circumstances that allow the processing of personal data to be considered lawful, indicating that the processing "shall be lawful only if at least one of the following conditions is met:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

b) the processing is necessary for the performance of a contract to which the data subject is party or

for the implementation at the request of the data subject of pre-contractual measures;

- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or camcorder systems for the purpose of preserving the safety of persons and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only relevant personal data that is strictly necessary to fulfill the purpose for which it is processed may be processed. The processing must be appropriate and proportional to the purpose it aims to achieve. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing that is carried out. In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places can only be carried out by the Security Forces and Corps with prior governmental authorization.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the security purpose.

That is to say, cameras and camcorders installed for security purposes may not capture images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum necessary portion to preserve the safety of persons and property, as well as their facilities.

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Under no circumstances shall the use of surveillance practices be permitted beyond the environment subject to the installation and, in particular, shall not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the aim of intimidating them or affecting their private sphere without justified cause is not permitted.

Images may not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces.

Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

Finally, it should be noted that in the case of installations of cameras that capture private spaces belonging to the Community of Owners through which neighbors transit, as occurs in the present case,

prior agreement by the Community of Owners is an unavoidable requirement, as mandated by Article 17.3 of the Horizontal Property Law.

IV

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Individuals or legal entities, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The obligation to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be fulfilled.

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4.- The processing of images through the installation of camera systems or video cameras must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

5.- The images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time the existence of the recording is known.

6.- The responsible party must maintain a record of activities of the processing carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The responsible party must conduct a risk analysis or, where applicable, a data protection impact assessment, to detect risks arising from the implementation of the video surveillance system, evaluate them, and, where appropriate, adopt appropriate security measures.

8.- When a security breach occurs that affects the camera treatments for security purposes, whenever there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (under the “Reports and Resolutions” / “Regulations” section),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the “Guides and Tools” section).

It is also of interest, in the case of processing low-risk data, the free tool Facilita (in the “Guides and Tools” section), which, through specific questions, allows assessing the situation of the responsible party regarding the processing of personal data they carry out, and where applicable, generating various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

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V

Commission of the Offense

In accordance with the proven facts previously mentioned, it is considered that they violate the principle of lawfulness of processing established in Article 6.1 of the GDPR. This violation is manifested in the absence of any of the conditions set forth in that article, as the respondent has installed a video surveillance camera at the door of their home capable of capturing images of the communal area of the building, without prior authorization from the homeowners' association of which that dwelling is a part.

Such a violation constitutes an infringement classified under Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)

For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

b) The processing of personal data without any of the conditions for lawfulness of processing established in Article 6 of Regulation (EU) 2016/679.

(...)

VI

Sanction to be Imposed

As previously indicated, according to the provisions of Article 83.5, the infringement of the aforementioned Article 6 may result in “administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount.”

However, the fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

Therefore, it is appropriate to scale the sanction to be imposed according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

Taking into account these articles, in the present case it is considered that the sanction to be imposed is an administrative fine in the amount of 300.00 € (THREE HUNDRED EUROS).

It is worth noting that voluntary payment of the proposed amounts does not exempt from demonstrating the regularization of the video surveillance system in accordance with the current regulations.

VII

Possible Measures

The present authority may impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the cited Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified timeframe...”.

In this case, the present authority requires the responsible party to notify this Agency within two

months of the adoption of the following measure:

- Demonstrate that they have proceeded to remove the camera or video camera system from the current location or, if applicable, obtain the agreement of the Homeowners' Association that expressly authorizes the establishment of such surveillance systems under the terms established by Article 17 of the Horizontal Property Law.

It is warned that failure to comply with the requirements of this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of a further administrative sanctioning procedure.

Therefore, in accordance with the applicable legislation and evaluated the criteria for scaling the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 300.00 € (THREE HUNDRED EUROS).

SECOND: TO ORDER B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, they demonstrate, within two months, that they have complied with the following measure:

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- Certify that you have proceeded with the removal of the camera or video camera system from the current location or, if applicable, obtained the agreement of the Community of Property Owners that expressly authorizes the establishment of this type of surveillance system under the terms established by Article 17 of the Horizontal Property Law.

THIRD: NOTIFY this resolution to B.B.B.

FOURTH: This resolution will be executable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes executable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executable, if the date of executability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of

Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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